

quotations and emphasis omitted].)

Here, rather than submit deposition testimony or discovery responses, the moving parties rely entirely on the declaration testimony of their counsel. His testimony reads:

On February 3, 2025, I took the deposition of Defendant Pamela Parker. On February 4, 2025, I took the deposition of Defendant Jorge Carapia, followed by the deposition of Defendant Maureen Carapia. The parties have also exchanged written discovery. To date, no medical or psychological records, or specific deposition testimony has been offered by any Defendant regarding the extent or impact of the alleged emotional harm they have suffered.

Based on written discovery and depositions, the parties simply are neighbors with no other preexisting relationship, have not engaged in any prior business dealings, professional relationships, or other interactions that would establish a special relationship between them.

(Brink Decl. at para. 8,9.)

Counsel's declaration does not attach the deposition transcripts or the discovery responses. This is inadequate to meet Cross-Defendants' initial burden under *Aguilar*. Consequently, they are not entitled to summary judgment.

Discovery Law & Motion

18. 9:01 AM CASE NUMBER: MSC19-01794

CASE NAME: MURPHY VS LU

***HEARING ON MOTION FOR DISCOVERY COMPEL LU TO RESPOND TO FURTHER REQUEST TO PRODUCE DOCUMENTS**

FILED BY: MURPHY, MICHAEL

TENTATIVE RULING:

Motion to Compel Further Responses to Document Request is denied as moot. Trial has already begun.

Courtroom Clerk's Session

19. 10:00 AM CASE NUMBER: C22-01744

CASE NAME: JESSE RIVERA VS. ZULAIKHA AKBARZADA

HEARING IN RE: PROVE-UP SET THE COURT

FILED BY:

TENTATIVE RULING:

Parties to appear in person in Dept. 32.